

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 9492 of 2023

Sohel Hossain

.... Convict-Petitioner

-Versus-

The State and another

.... Opposite Parties

Mr. Shofiul Alam Mahmood, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 06.02.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure at the instance of sole accuse Sohel Hossain for quashment of the impugned judgment and order of conviction and sentence dated 06.08.2019 passed by the learned Joint Sessions Judge, Court No. 3, Noakhali convicting the petitioner under Section 138 of the Negotiable Instrument Act and sentence him there under to simply imprison of 01(one) year and fine of Taka 26,38,376.00.

Mr. Shofiul Alam Mohmood, learned Advocate for the petitioner submits that the petitioner obtained a loan of Taka 40,00,000.00 by

giving mortgage of his immoveable property as well as by issuing a cheque as security of above loan. The opposite party initiated a proceeding under Section 12 of the Artha Rin Adalat Ain, 2003 and sold the mortgaged immoveable property of the petitioner for an amount of Taka 1,35,40,000.00 and after satisfaction of above loan including interest of Taka 1,20,07,640.00 the opposite party returned surplus money to the petitioner.

The opposite party as complainant filed this case under Section 138 of the Negotiable Instrument Act and obtained the impugned judgment and order of conviction and sentence against the petitioner. Since the opposite party bank has already realized the full amount of outstanding money from the petitioner above impugned judgment and order of conviction and sentence is preposterous, unlawful and liable to be quashed.

Mr. Mohammad Ali Akkas, learned Advocate for opposite party Islami Bank Bangladesh submits that the bank has realized full outstanding loan money along with interest of Taka 1,20,07,640.40 by selling out mortgaged immoveable property of the petitioner in auction. As such the impugned judgment and order of conviction and sentence passed against the petitioner in Sessions Case No. 651 of 2018 may be quashed.

Mr. Sujit Chatterjee, learned Deputy Attorney General submits that since the opposite party bank has already realized full outstanding loan money along with interest by way of auction sale of the mortgaged property of the petitioner the impugned judgment and order of conviction and sentence passed by the learned Joint Sessions Judge in Sessions Case No. 651 of 2018 appears to be oppressive and unjust and the same may be quashed.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

Section 138 of the Negotiable Instrument Act, 1881 provides a sentence of imprisonment which may extend upto 01(one) year and also fine and above offence has been made compoundable. A judgment passed by the Court of Sessions under Section 138 of the Negotiable Instrument Act is appealable to the Court of appeal. Since the impugned judgment and order of conviction and sentence was passed by the learned Joint Sessions Judge the same was subject to appeal to the Court of Sessions but for preferring an appeal 50% money of the dishonored cheque which was Taka 26,00,000.00 was required to be deposited.

It has been stated by the learned Advocates for the both sides as well as the learned Deputy Attorney General that the opposite party bank already realized the outstanding loan money along with interest of the loan by selling out the mortgaged immoveable property of the petitioner.

The impugned cheque was submitted by the petitioner to the opposite party bank as an additional security of above loan. Since the property of the petitioner was sold in auction by the bank and realized above outstanding loan money the petitioner was unable to prefer an appeal in the Court of appeal below after making a deposit of 50% money of the dishonored cheque.

On consideration of above facts and circumstance of the case we are of the view that after selling of the mortgaged property of the petitioner and realization of the loan money in full again asking the petitioner to prefer an appeal against the impugned judgment and order of conviction and sentence by depositing 50% of money of the dishonored cheque will be oppressive and unjust.

Moreover, the impugned cheque which was issued as an additional security does not have any consideration after above realization.

In above view of the materials on record we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The proceedings of the impugned judgment and order of conviction and sentence was passed by the learned Joint Sessions Judge, Court No. 3, Noakhali in Sessions Case No. 651 of 2018 is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.